

		contention they are entitled to statutory immunity under Pen. Code §847, subd. (b) is not persuasive. Pen. Code §847, subd. (b) provides "There shall be no civil liability on the part of, and no cause of action shall arise against, any peace officer or federal criminal investigator or law enforcement officer described in subdivision (a) or (d) of Section 830.8, acting within the scope of his or her authority, for false arrest or false imprisonment arising out of any arrest under any of the following circumstances: (1) The arrest was lawful, or the peace officer, at the time of the arrest, had reasonable cause to believe the arrest was lawful." Since, as discussed above, the question of reasonable cause in this case is a question that must go to the jury, the application of Pen. Code §847, subd. (b) is not a basis for summary judgment here. Plaintiff shall provide notice of this ruling.
6	Ocampo vs. Nguyen 2024-01431732	Motion for Summary Judgment and/or Adjudication When a defendant seeks summary judgment, it bears the burden of proof by a preponderance of the evidence to establish that an action has no merit, that plaintiff cannot prove an element or some elements of a cause of action, or that a complete defense is established as a matter of law entitling it to judgment. C.C.P. § 437c (p) (2), and Hunter v. Pacific Mechanical Corp. (1995) 37 Cal.App.4th 1282, 1287. If the moving party cannot meet its burden, then the opposing party has no burden to oppose the motion by submitting evidence demonstrating that triable issues of fact exist in the case. Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 840. But if the moving party carries its initial burden, then the party opposing the motion must produce admissible evidence to show that a triable issue of fact, or issues of fact, exists. C.C.P. § 437c (p) (2), and Green

		v. Ralee Engineering Co. (1998) 19 Cal.4th 66, 72. The moving party's papers are to be strictly construed, while the opposing party's papers are to be liberally construed. (Committee to Save Beverly Highland Homes Ass'n v. Beverly Highland (2001) 92 Cal.App.4th 1247, 1260.) A court may not make credibility determinations or weigh the evidence on a motion for summary judgment or adjudication, and all evidentiary conflicts are to be resolved against the moving party. (McCabe v. American Honda Motor Corp. (2002) 100 Cal.App.4th 1111, 1119.) Here, if Moving Party is successful in meeting its initial burden, the burden then shifts to plaintiff to produce evidence to raise a triable issue of fact as to why the Moving Party should be liable for plaintiff's injuries. Merits Note: Nguyen's Separate Statement in support of the motion is appended to the memorandum in support of the motion. It is not filed separately. While technically not a violation of the CRC, it is extremely difficult for the reader to locate (beginning on page 34 of a 67-page document.) In automobile accident cases, particularly rear-end collisions, defendants face significant challenges in obtaining summary judgment. In Kramer v. Barnes, (1963) 212 Cal.App.2d 440, the court held that the fact of a rear-end collision itself constitutes evidence of negligence, and a showing that the defendant's vehicle had been stopped for five to ten seconds before being struck was "insufficient to absolve defendant from negligence as a matter of law." Courts recognize that credibility determinations and weighing of conflicting evidence are inappropriate at the summary judgment stage. Somerville v. Providence Washington Indem. Co. (1963) 218 Cal.App.2d 237.
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		In contrast, the court in Beck v. Kessler (1965) 235 Cal.App.2d 331, recognized Kramer as support for the rule that in rear-end collision cases, the question of a following driver's negligence generally presents a factual issue for the trier of fact. However, Beck v. Kessler emphasized that Kramer v. Barnes dealt only with whether defendant's own affidavits furnished enough proof of negligence to require a triable issue of fact, thus necessitating reversal of summary judgment in that particular context. Beck v. Kessler distinguished its own facts from Kramer's, noting that in some rear-end collision cases—including its own—undisputed facts may compel a finding of negligence as a matter of law. Therefore, Beck v. Kessler limits Kramer's reach to its facts and does not interpret it as foreclosing the possibility that, under different circumstances, the trier of fact may be directed to a single conclusion of negligence or non-negligence. Essentially, Beck v. Kessler observed that while Kramer recognized a permissible inference of negligence from a rear-end collision may be made, it expressly left open that such an inference might be rebutted, and it does not treat the holding as establishing an invariable rule or precluding summary judgment in all rear-end collisions. While Beck holds that the question of liability (or non-liability) may be a question of law suitable for summary adjudication, the court must look at the specific facts of the case to make such a determination. The evidence here is as follows: - Nguyen was not running late or distracted at the time of the incident (UMF #3) - Nguyen's head was up the entire time (UMF #4) - Nguyen could clearly see where she was going without any vision obscurants. (UMF #6)
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		- Nguyen could not avoid impacting the rear left bumper side of Ocampo's car. (UMF #8) - Ocampo was running late to school that morning. (UMF #10) - Nguyen's accident reconstructionist determined Ocampo attempted an illegal left turn directly in front of Nguyen. (UMF #17) Ocampo disputes all of the above evidence, but even if the Court were to accept the above to be true, the evidence is insufficient to absolve Nguyen from liability as a matter of law. The evidence does not foreclose the possibility that Nguyen was contributorily negligent in the operation of her vehicle that morning. As discussed above, the court in Kramer held that "a collision in which a following motorist collides with the rear end of a vehicle ahead is some evidence of negligence on the part of the following motorist." Kramer further held "Prima facie each case imports negligence and explanations are in order." This principle creates a permissible inference of negligence from the fact of a rear-end collision, requiring "some explanation or excuse from the driver of the rear car." Beck v. Kessler, supra. Whether the rear driver was negligent "is essentially a question of fact and not of law because it is dependent upon the circumstances of the individual case." Kramer, supra. The defendant must present evidence explaining how the collision occurred despite the exercise of reasonable care. For example, the court in Harding v. Mac Dougal, (1969) 275 Cal.App.2d 396, held that depositions presented factual issues precluding summary judgment regarding "whether driver of middle vehicle was negligent in tailgating, stopping suddenly without signal or warning to driver of vehicle to his rear, or was driving at excessive speed."
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		Further, Ocampo has presented evidence that it was raining at the time the incident occurred (or shortly prior to the incident.) Without evidence demonstrating Nguyen was driving safely for the road conditions or absence of distraction, she cannot meet the burden for summary judgment. For example, the court in <i>Bewley v. Riggs</i>, (1968) 262 Cal.App.2d 188, held summary judgment for the leading driver was precluded where "inquiry as to whether or not there was negligence by leading driver in rear-end automobile collision case was strictly dependent upon what the findings of fact might prove to be." The circumstances surrounding the accident, including attention to driving and road conditions, present questions of fact that must be resolved by the trier of fact rather than on summary judgment. Nguyen testified that her "head was up" at the time of the accident, but that doesn't mean she wasn't distracted by something else on the roadway at the time the incident occurred. Further although she claims she was traveling with the flow of traffic, if the road was wet, there is no indication she was travelling at a speed that was safe for the road conditions. In sum, the Court denies summary judgment. Nguyen has not met her initial burden showing she was in no way responsible for the subject traffic collision. RULING: Defendant Jenny Nguyen's motion for summary judgment as to the claims of plaintiffs Efigenia Ocampo and Val Erie Ocampo is DENIED. Nguyen has not met her initial burden showing plaintiffs cannot prove an essential element of their claim. Nguyen has not shown, as a matter of law, that she did not cause or contribute to the rear end accident. See C.C.P. § 437c (p) (2), and <i>Hunter v. Pacific Mechanical Corp.</i> (1995) 37 Cal.App.4th 1282, 1287.
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		Plaintiffs' objections to the declaration of Jenny Nguyen are overruled. Plaintiffs' objections to the declaration of Daniel F. Trudell is sustained as to Exhibit B and otherwise overruled. Moving Party shall give notice.
9	Ferrer vs. Essence Home Care, LLC 2024-01439555	Motion to Compel Production Plaintiff Jose Ferrer's motion to compel further responses to his first set of requests for production is GRANTED as follows. (See Code Civ. Proc., § 2031.310.) Defendant Essence Home Care, LLC (EHC) is ORDERED to provide verified further responses without objections to plaintiff's first set of requests for production, Nos. 11-13, 15, 17, 22, 25, 27, 28, 35-38, and 48-54, within 14 days of notice. To avoid any confusion, EHC's further responses shall include the simultaneous production of any and all responsive documents to these requests. Sanctions are DENIED, as plaintiff has failed to demonstrate a proper meet and confer effort. (See Code Civ. Proc., §§ 2016.040 [eff. 1/1/26], 2031.310, subd. (b)(2).) As of 1/1/26, a proper meet and confer requires "a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Id., § 2016.040.) In other words, a mere letter is no longer enough. Plaintiff should have agreed to the telephonic conference requested by EHC's counsel. (See LaCour Decl. ¶¶ 12-13.) Plaintiff shall give notice.